2. He/she must make and subscribe to an oath or affirmation before the person authorised by the election commission for this purpose. In his/her oath or affirmation, he/she swears —

(a) To bear true faith and allegiance to the Constitution of India

(b) To uphold the sovereignty and integrity of India

3. He/she must be not less than 30 years of age in the case of the Rajya Sabha and not less than 25 years of age in the case of the Lok Sabha.

4. He/she must posses other qualifications prescribed by Parliament.

The Parliament has laid down the following additional qualifications in the Representation of People Act (1951).

1. He/she must be registered as an elector for a parliamentary constituency. This is same in the case of both, the Rajya Sabha and the Lok Sabha. The requirement that a candidate contesting an election to the Rajya Sabha from a particular state should be an elector in that particular state was dispensed with in 2003. In 2006, the Supreme Court upheld the constitutional validity of this change.

2. He/she must be a member of a scheduled caste or scheduled tribe in any state or union territory, if he/she wants to contest a seat reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them.

 **Disqualifications**

Under the Constitution, a person shall be disqualified for being elected as a member of Parliament:

1. if he/she holds any office of profit under the Union or state government (except that of a minister or any other office exempted by Parliament).[6]

2. if he/she is of unsound mind and stands so declared by a court.

3. if he/she is an undischarged insolvent.

4. if he/she is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state; and

5. if he/she is so disqualified under any law made by Parliament.

The Parliament has laid down the following additional disqualifications in the Representation of People Act (1951):

1. He/she must not have been found guilty of certain electoral offences or corrupt practices in the elections.

2. He/she must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.

3. He/she must not have failed to lodge an account of his/her election expenses within the time.